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Food dye faces first statewide ban. Why some officials are concerned about Red No. 3

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When California became the first state to ban the use of food coloring Red No. 3, the vote once again raised questions about the safety and potential harms of the bright red dye.

The coloring was banned in U.S. cosmetics and external drugs in 1990, after the Food and Drug Administration said Red No. 3 was proven to cause cancer in rats.

International agencies followed suit, and the dye was banned in products in the European Union in 1994, with the exception of maraschino cherries, the New York Times reported.

But despite a pledge from the FDA to remove the dye from food manufacturing, Red No. 3 continues to be used in food products here at home.

Here's what you need to know.

What is Red No. 3?

Red No. 3 is just one name for erythrosine, a brown powder that combined with liquid provides a "watermelon-red color," according to the International Association of Color Manufacturers.

The coloring is commonly used in candies and pharmaceutical products, but it's also in foods like breakfast cereals, baking decorations and frostings, dried fruit, frozen breakfast foods, hot drinks, juice and processed fish, meat and eggs, the association said.

There are more than 3,000 products on store shelves that contain the dye, according to a database maintained by the Environmental Working Group.

This time of year, Halloween candy stands out as a potential source of Red No. 3.

Brach's Candy Corn, PEZ candies, Sixlets, Fruit by the Foot, Ring Pops and Dubble Bubble make the list of candies that may end up in Halloween buckets this year that contain the dye, according to the Center for Science in the Public Interest.

The coloring is also known by the names INS No. 127, E 127, CI Food Red 14 and CAS No. 16423-68-0, according to the color association.

Does Red No. 3 cause cancer?

Concerns about the dye first started when an unpublished study from the FDA found what it believed to be a link between consumption of Red No. 3 and thyroid cancer, though the study was only conducted in rats.

There have been no studies that conclusively link Red No. 3 to cancer in humans.

That doesn't mean it doesn't have risks.

"The FDA says it isn't safe enough to put it on our cheeks, but it's okay to put it in our mouths?" Lisa Lefferts, a scientist with the Center for Science in the Public Interest told the Washington Post. "That's crazy."

The CSPI filed a petition with the FDA to remove the ingredient from food products, and the FDA told news outlets the petition is being reviewed.

More studies on the dye have found connections between Red No. 3 and cancer in animals, as cited in the petition, but those connections have not been made in any human studies.

Other risks to children

In the petition, the group also cited a 2021 study from the California Office of Environmental Health Hazard Assessment that said synthetic food dyes, including Red No. 3, were contributing to the increase of behavioral issues in children.

"Overall, human studies indicate that synthetic food dyes are associated with adverse neurobehavioral outcomes in children, and that children vary in their sensitivity to synthetic food dyes," the researchers said in a news release. " ... Researchers also found that all of the FDA's Acceptable Daily Intake levels (ADIs) for synthetic food dyes are based on 35- to 70-year-old studies that were not designed to detect the types of behavioral effects that have been observed in children."

With so many of the products that contain the dye geared toward children, avoiding those candies and treats is still recommended by health officials.

"Children are not little adults," Linda Birnbaum, a microbiologist and former director of the National Institute of Environmental Health Sciences, told the Washington Post. "Often because their bodies are rapidly growing and changing, they are more at risk from chemical exposure than adults would be."

The CPSI petition was signed by representatives from a variety of health interest groups, including Breast Cancer Prevention Partners, Center for Environmental Health, Center for Food Safety, Consumer Federation of America, Consumer Reports, Public Health Institute and the Children's Advocacy Institute at the University of San Diego School of Law, among others.

California takes the first step

While individual manufacturers have pledged to remove the dye from their products, California became the first state to call for a legal ban on Red No. 3.

Assembly Bill 418 passed in the state legislature and then was signed by Governor Gavin Newsom on Oct. 7, with plans to be enacted on Jan. 1, 2027.

The bill bans Red No. 3 from food products, as well as brominated vegetable oil, potassium bromate and propylparaben, all ingredients with elevated health risk, McClatchy News reported.

California Assemblyman Jesse Gabriel, a Democrat from Woodland Hills, coauthored the bill and cited existing bans in Europe, Japan and South Korea.

"When Washington fails to act, California is going to step up and lead on these issues," Gabriel said on the Assembly floor after the vote for the bill, McClatchy News reported.

It is now up to other states to take steps against Red No. 3, until the FDA makes a federal ruling.

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